

Colorado County - Federal non-compliance

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Date: February 19, 2026 15:54 UTC

February 18, 2026

VIA EMAIL

Colorado County Commissioners Court
Honorable Ty Prause, County Judge
Commissioner Shannon Owers, Precinct 1
Commissioner Ryan Brandt, Precinct 2
Commissioner Keith Neuendorff, Precinct 3
Commissioner Darrell Gertson, Precinct 4
400 Spring Street
Columbus, Texas 78934

RE:Federal Non-Compliance at Colorado County Jail; Risk to Taxpayer Funds

Honorable Judge Prause and Commissioners:

I write to bring to the Commissioners Court's urgent attention a matter of significant legal and financial consequence to the citizens of Colorado County: the Colorado County Jail's complete failure to comply with federal Prison Rape Elimination Act (PREA) standards and related constitutional requirements — while simultaneously receiving millions of dollars in federal grant funds.

I. THE COUNTY'S OWN ATTORNEYS HAVE ADMITTED SYSTEMIC NON-COMPLIANCE

In response to Texas Public Information Act requests, the County Attorney's Office, & the County's outside legal counsel, Allison, Bass & Magee, L.L.P., has formally confirmed in writing that the Colorado County Jail has **no policies whatsoever** for the following federally-mandated and constitutionally-required protections:

- No written policy for inmate privacy during showering, toileting, or changing clothes
- No written policy governing opposite-gender staff viewing of inmates
- No written policy requiring staff to announce their presence in housing units

McKinzie Matten - Correspondence

- No PREA policy
- No designated PREA Coordinator
- No PREA training records

These are not technical paperwork deficiencies. These are fundamental failures to protect inmates from sexual abuse, assault, and constitutional violations — protections required by federal law under 34 U.S.C. § 30301 et seq. (PREA) and the U.S. Constitution.

II. THE COUNTY RECEIVED OVER \$2 MILLION IN FEDERAL FUNDS FOR "JAIL COMPLIANCE"

According to the Project and Expenditure Report provided by the County Attorney's office, Colorado County received **\$4,174,763.00** in State and Local Fiscal Recovery Funds (SLFRF) under Award ID SLFRP4543. Of this amount, **\$2,274,832.56** was allocated to "Jail Rehabilitation" with the stated purpose of helping the jail *"remain in compliance to Texas Commission on Jail Standards."*

Yet, when asked to produce basic compliance documentation — including the Financial Assistance Agreement and Assurances of Compliance with Civil Rights Requirements (Title VI) — the County Attorney responded in writing: **"No records responsive."**

The County accepted millions of federal dollars to achieve "compliance" while having no compliance infrastructure in place and no documentation of the civil rights certifications required as a condition of the award.

III. A FEDERAL COMPLAINT HAS BEEN FILED

Based on the County's own admissions — documented in writing by the County Attorney's Office & the County's legal counsel — I have filed a formal complaint with the U.S. Department of Treasury Office of Inspector General and that now includes a supplemental report.

The complaint alleges that Colorado County received federal SLFRF funds while falsely certifying compliance with federal requirements, and that the County lacks the basic civil rights infrastructure required as a condition of accepting these funds.

The evidence supporting this complaint consists entirely of documents produced and signed by the County's own attorneys. This is not a matter of disputed facts — it is a matter of the County's documented admissions.

IV. CONTINUED NON-COMPLIANCE PUTS TAXPAYER DOLLARS AT RISK

Federal grant programs carry serious consequences for non-compliance, including:

- **Clawback of funds:** The federal government may demand repayment of improperly used or falsely certified grant funds

McKnight Matter – Correspondence

- **Ineligibility for future funding:** Non-compliant jurisdictions may be barred from future federal grants
- **Civil liability:** The County faces significant exposure under 42 U.S.C. § 1983 for constitutional violations resulting from its policy failures
- **Criminal referral:** In egregious cases, false certifications to federal agencies can result in criminal liability

Every day the County remains out of compliance, it exposes Colorado County taxpayers to these risks.

V. DEMAND FOR IMMEDIATE ACTION

I respectfully demand that the Commissioners Court take immediate action to bring the Colorado County Jail into compliance with federal law. Specifically, I request that the Court direct the Sheriff's Office to:

1. Adopt and implement a comprehensive PREA policy meeting all requirements of 28 C.F.R. Part 115;
2. Designate a PREA Coordinator as required by federal standards;
3. Implement written policies for inmate privacy, cross-gender viewing, and staff announcement requirements as mandated by PREA and the Texas Commission on Jail Standards;
4. Conduct mandatory PREA training for all jail staff and document that training;
5. Adopt a written use of force policy that complies with constitutional standards; and
6. Conduct an independent audit of the jail's compliance with all applicable federal and state standards.

CONCLUSION

The Commissioners Court has a fiduciary duty to the citizens of Colorado County to ensure that tax dollars are not wasted and that the County operates within the law. The documented absence of basic federal compliance at the County Jail — while the County simultaneously accepted over \$2 million in federal funds for "compliance" — is a serious breach of that duty.

The cost of coming into compliance now is far less than the cost of federal fund clawbacks, civil rights judgments, and the continued exposure of inmates to unconstitutional conditions. I urge the Court to act immediately.

I request that this letter be read into the record at the next Commissioners Court meeting and that I be notified of any action taken in response.

Respectfully,

McKnight Matter – Correspondence

/s/ [REDACTED]

Harold "Wayne" [REDACTED]

[REDACTED]

Columbus, TX 78934

[REDACTED]

cc: Sheriff Justin Lindemann, Colorado County Sheriff's Office (Email)

cc: Jay Johannes, Colorado County Attorney (Email)

cc: U.S. Department of Treasury, Office of Inspector General (Via Certified Mail)